

Cal.App.4th 1179, 1184; *Donohue v. San Francisco Hous. Auth.* (1993) 16 Cal.App.4th 658, 665; *Osborn, supra*, 224 Cal.App.3d at 119.)

While it is reasonably possible for a jury to conclude that the condition was open and obvious based on the picture taken near the time of the accident (Decl. of Wong, ¶ 3), Defendant presents no evidence to support its conclusion that “there was no reason for Plaintiff to walk on the sloped median divider” (Decl. of Melendez, ¶ 7.) That there was a crosswalk leading from the sidewalk provided by Defendant to the parking lot proves nothing since Plaintiff had already crossed to the parking lot and was traveling to a parking bay in the lot west of the crosswalk. (See, Decl. of Wong, ¶ 3 [authenticating photograph showing the location of the incident].) Plaintiff avers, and Defendant has not refuted, that she was traveling to her vehicle deeper in the lot, where there were no marked pedestrian walkways, during a time when vehicles were exiting the lot, and had to choose between walking on the parking area where cars were exiting and the median. (Decl. of Steward, ¶¶ 14-15.)

CIVIL RIGHTS DEPARTMENT v. AUTOZONERS, LLC

Case No. CU25-10561

Respondent’s Motion for Attorneys’ Fees

TENTATIVE RULING

Respondent AUTOZONERS, LLC moves for an award of attorneys’ fees pursuant to Government Code section 12963.5, subdivision (e)(2) subsequent to this court’s March 6, 2026 order denying Petitioner CIVIL RIGHTS DEPARTMENT’s (“CRD”) petition to compel compliance with an investigative subpoena on the basis that Petitioner effectively filed its petition outside of the one-year statute of limitations on its underlying investigation.

Hon v. Marshall (1997) 53 Cal.App.4th 470 (*Hon*) and *Linsley v. Twentieth Century Fox Film Corp.* (1999) 75 Cal.App.4th 762 (*Linsley*) are the most relevant authority on the question of attorneys’ fee awards under Government Code section 12963.5, subdivision (e)(2).

In *Hon* the plaintiff filed a complaint relevantly including causes of action under the Fair Housing and Employment Act (“FEHA”) alleging that her employer made sexually suggestive and derogatory comments to her and denigrated her Buddhist faith. (*Hon, supra*, 53 Cal.App.4th at p. 473.) However, the plaintiff never filed an administrative complaint prior to bringing those causes of action, losing on summary judgment due to failure to exhaust administrative remedies. (*Id.* at pp. 473-474.) The defendants moved for and received attorneys’ fees under Government Code section 12965, which at the time had at subdivision (b) a provision simply permitting attorneys’ fees to prevailing parties in FEHA actions in the court’s discretion. (*Id.* at p. 475.)

The *Hon* appellate court, called on to answer the question of first impression of whether summary judgment due to a jurisdictional defect creates a “prevailing party,” noted that

California courts construing the FEHA often look to federal cases interpreting the powerfully analogous statutes of Title VII of the federal Civil Rights Act, the Age Discrimination in Employment Act, and the Americans with Disabilities Act. (*Hon*, *supra*, 53 Cal.App.4th at p. 475.) The standard for an award of attorneys' fees to a prevailing party in a Title VII action is articulated in *Christiansburg Garment Co. v. EEOC* (1978) 434 U.S. 412 (*Christiansburg*): a successful defendant in such an action is only to receive fees where the plaintiff's action was frivolous, unreasonable, or without foundation. (*Christiansburg* at p. 421.) Attorneys' fees should not be assessed against plaintiffs simply because they did not ultimately prevail because to do so could chill vigorous enforcement of the Civil Rights Act. (*Id.* at p. 422.) Observing the tendency of federal courts to avoid awarding fees when cases were defeated on jurisdictional grounds, the *Hon* court decided that section 12965 did not support awarding fees following summary judgment granted on the basis of failure to exhaust administrative remedies. (*Hon* at pp. 476-477.)¹

In *Linsley* the plaintiff alleged age and medical disability discrimination against his employer under the FEHA. (*Id.* at pp. 764-765.) He lost that claim on summary judgment because he had executed a settlement agreement and general release found (after writ of mandate) to have been valid and not a product of coercion. (*Id.* at p. 765.) The defendants moved for and received attorneys' fees under section 12965 over the plaintiff's argument under *Hon* that the summary judgment motion did not consider the merits and so did not make the defendants "prevailing parties." (*Ibid.*) The *Linsley* court found that the lower court acted within its discretion to award attorneys' fees because the plaintiff continued to litigate after it became clear his action was frivolous, unreasonable, or groundless due to the release. (*Id.* at p. 767.) The defendants advised him of the release shortly after he filed the complaint, so competent counsel would have realized there was no battle to fight. (*Id.* at pp. 767-768.) The *Linsley* court distinguished the situation before it from *Hon* on the basis that "*Hon* related to a failure to exhaust remedies which was a basis of all of the plaintiff's claims. The issue of failing to exhaust administrative remedies which was raised in *Hon* is not akin to the ground raised in this case; i.e., the execution of a valid release...Moreover, *Hon* did not address whether a general release is a mere technicality or could never support an attorney fee award. *Hon* also did not address the issue of whether the *Christiansburg* standard is triggered by continuing to pursue litigation in the face of a valid release of unlawful discrimination claims." (*Id.* at p. 771.)

Linsley is more strongly analogous to the case before this court.

Petitioner's failure to timely file its petition prior to expiration of its jurisdiction is not akin to a simple failure by a litigant to exhaust administrative remedies before commencing

¹ The fee award language of section 12963.5 expressly incorporates the limitations used in 12965 that fees to the prevailing party are appropriate if the action is frivolous, unreasonable or groundless when brought or after plaintiff continued to litigate after it clearly became so. (*People v. Harrison* (1989) 48 Cal.3d 321, 329 [similar language in statutes on similar topics similarly construed].)

an action. As the government agency charged with objectively investigating complaints, Petitioner uniquely is in a position to know exactly how the process works.

Petitioner delayed pursuing discovery in this action, serving an administrative investigation subpoena for Respondent's PMK on October 1, 2025 which noticed a deposition for October 31, 2025 to which Respondent served objections on October 23, 2025. (See Declaration of Conor Mack, ¶¶ 4-6; Exh. 4.) Knowing it had only 1 year to investigate before it lost jurisdiction, Petitioner tried to file its petition on the very last day possible. (See Declaration of Lily Weaver in Support of Petition Filed 11/7/25 at ¶ 13 [noting one-year investigative deadline and request to Respondent for tolling agreement].) This is despite Respondent negotiating and agreeing to a tolling agreement which provided for a more limited scope of discovery for a PMK deposition.

On January 26, 2026 the court informed Petitioner that its original document filed November 7, 2025 was not actually a properly filed petition but an erroneously filed declaration labeled as a petition and that Petitioner's amended petition filed November 21, 2025 would be construed as the original pleading in this case. By virtue of the filing of an Amended Petition, Petitioner was apparently already aware of its filing error. Additionally, the court flagged the resultant deadline issue with the petition and directly informed Petitioner of its observations on February 19, 2026. (Declaration of Asaf Orr in Support of Opposition at ¶ 23, Exhibit D [e.g., pages 5:11-20, 10:7-11].)

Petitioner's continued pursuit of the petition was objectively unreasonable when it filed the Amended Petition after the 1-year expiration of its jurisdiction and clearly unreasonable when it decided to maintain and actively litigate the action. As a policy matter, it is concerning when a government agency that is charged with objectively investigating administrative complaints fails to observe jurisdictional limits to its own exercise of power.

Because Petitioner unreasonably prosecuted a petition it knew was untimely, Respondent is a prevailing party for purposes of Government Code section 12963.5, subdivision (e)(2). Respondent is entitled to be made whole and recover attorneys' fees incurred in connection with its response to Petitioner's unreasonable action.

Petitioner's sole challenge to Respondent's claimed fees is that 11.7 hours of attorney time expended on its January 21, 2026 opposition to Petitioner's ex parte application for an order to show cause were unnecessary and duplicative in light of the existence of Respondent's January 5, 2026 opposition to the same application. The court finds that Respondent's January 21, 2026 filing was not unnecessary or duplicative. Respondent's January 5, 2026 opposition stated that Respondent had not been served with Petitioner's application and could not substantively oppose the application yet. Respondent's January 21, 2026 opposition was a substantial opposition to the application that was not duplicative of the January 5, 2026 filing.

Respondent's motion for attorneys' fees is granted. Respondent's hourly rate is reasonable and consistent with Solano County rates and the number of hours expended is appropriate given the appearances and pleadings filed in this action.

Respondent is awarded \$18,809.50 in reasonable attorneys' fees.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002